

26CHCV00792 26CHCV00792

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Case Number: 26CHCV00792 Hearing Date: September 2, 2026 Dept: F49

Dept. F49

Date: 9/2/26

Case Name: Amir Setoudeh vs. Gjoko Ukoeski; Joe Uko
Inc. dba Urban Remodeling; and Does 1-20

Case No. 26CHCV00792

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 2, 2026

MOTION FOR ORDER AUTHORIZING
SERVICE BY PUBLICATION

Los Angeles Superior
Court Case No. 26CHCV00792

Motion filed: 4/27/26

MOVING PARTY: Plaintiff Amir Setoudeh

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court permitting Plaintiff Amir Setoudeh to serve Defendant Gjoko Ukoeski by publication.

TENTATIVE RULING: The motion is DENIED WITHOUT PREJUDICE.

BACKGROUND

This action arises from the alleged failure of Defendants to perform home renovations pursuant to a contract with Plaintiff. On February 24, 2026, Plaintiff Amir Setoudeh ("Plaintiff") filed the Complaint against Defendants Gjoko Ukoeski ("Ukoeski"), Joe Uko Inc. dba Urban Remodeling ("Urban Remodeling"), and Does 1 through 20, alleging the following causes of action: (1) breach of written contract, (2) intentional misrepresentation, (3) fraud, (4) conversion, and (5) constructive trust.

On April 27, 2026, Plaintiff filed the instant Motion for Order Authorizing Service by Publication (the "Motion").

ANALYSIS

Pursuant to Code of Civil Procedure section 415.50, the Court may order service by publication if "upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner ... and ... [a] cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action."

"The term 'reasonable diligence' ... denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney. [Citations.] A number of honest attempts to learn defendant's whereabouts or his address by inquiry of relatives, ... and by investigation of appropriate city and telephone directories, ... generally are sufficient." (Watts v. Crawford (1995) 10 Cal.4th 743, 749, fn. 5.)

Whether

reasonable diligence has been shown is fact-specific. (Kott v. Super. Ct. (1996) 45 Cal.App.4th 1126, 1137-1138.) The inquiry involves consideration of what facts were known at the time and whether the plaintiff made a reasonable effort to locate the defendant based on those facts. (Ibid.)

Plaintiff seeks an order permitting service by publication on Ukoeski. Plaintiff submits the declaration of his counsel, Bradley J. Yourist (“Yourist”), in support of the Motion. Yourist attests that Plaintiff has been unable to serve Ukoeski personally despite diligent effort. (Yourist Decl., ¶ 2.) In addition to engaging a registered process server to attempt service at Ukoeski’s last known address, Yourist performed internet searches for Ukoeski and hired a private investigator to verify Ukoeski’s address. (Id., ¶¶ 2-3.) The registered process server made several attempts to serve Ukoeski at 12509 Saddle Court, Porter Ranch, CA 91326. (Yourist Decl., Exh. 1.) The investigator identified the foregoing address as property owned by Ukoeski. (Yourist Decl., Exh. 2, Simms Decl., ¶ 6.) Upon Plaintiff’s representations, the investigator concluded that the Saddle Court address was Ukoeski’s last known address. (Id., Exh. 2, Simms Decl., ¶ 10.)

However, the investigator also identified Ukoeski’s voter registration address and several properties owned by Ukoeski, one of which—a Calabasas, California location—was reported as an address where Ukoeski resided. (Id., Exh. 2, Simms Decl., ¶¶ 5-6.) Yourist does not document any attempted service at these addresses or further inquiry into them. Repeated service attempts at a single address where investigation has revealed other possible residences does not constitute a “thorough, systematic investigation and inquiry” satisfying the reasonable diligence standard of section 415.50.

Based on the foregoing, the Court DENIES the Motion, without prejudice to Plaintiff moving for relief after appropriate investigation and inquiry.

CONCLUSION

Plaintiff Amir Setoudeh’s Motion for an Order Authorizing Service by Publication is DENIED WITHOUT PREJUDICE.

Moving party to give notice.

MOTION FOR ORDER PERMITTING
SERVICE ON THE SECRETARY OF STATE

Los Angeles Superior
Court Case No. 26CHCV00792

Motion filed: 4/22/26

MOVING PARTY: Plaintiff Amir Setoudeh

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court permitting Plaintiff Amir Setoudeh to serve Defendant Joe Uko Inc., a California corporation, by serving the Summons and Complaint on the California Secretary of State.

TENTATIVE RULING: The motion is DENIED WITHOUT PREJUDICE.

BACKGROUND

This action arises from the alleged failure of Defendants to perform home renovations pursuant to a contract with Plaintiff. On February 24, 2026, Plaintiff Amir Setoudeh ("Plaintiff") filed the Complaint against Defendants Gjoko Ukoeski ("Ukoeski"), Joe Uko Inc. dba Urban Remodeling ("Urban Remodeling"), and Does 1 through 20, alleging the following causes of action: (1) breach of written contract, (2) intentional misrepresentation, (3) fraud, (4) conversion, and (5) constructive trust.

On April 22, 2026, Plaintiff filed the instant Motion for an Order Permitting Service of Process on the California Secretary of State (the "Motion").

ANALYSIS

Pursuant to Corporations Code section 1702, subdivision (a), the Court may order service

upon a corporation by delivery by hand to the Secretary of State, "[i]f an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b), or (c) of Section 416.10 or subdivision (a) of Section 416.20 of the Code of Civil Procedure."

Service

by delivery to the Secretary of State is intended as a "last resort" where other, more effective, methods of service cannot be accomplished. (*Gibble v. Car-Lene Research, Inc.* (1998) 67 Cal.App.4th 295, 312.)

Methods

to be attempted before applying for an order permitting service on the Secretary of State include: (1) personal delivery to the agent for service of process (Code Civ. Proc., § 415.10); (2) leaving a copy of the summons and complaint at the person's office or usual mailing address with a person apparently in charge thereof (§ 415.20, subd. (a)); (3) mailing a copy of the summons and complaint, with two copies of the notice and acknowledgement of receipt, to the person to be served (§ 415.30, subd. (a)); (4) delivery to the president, chief executive officer, or other head of a corporation, or a vice president, secretary, treasurer, controller, general manager, or other authorized person (§ 416.10); or (5) delivery to a trustee of the corporation and of its stockholders or members if the corporation has been dissolved or has forfeited the right to do business (§ 416.20, subd. (a)).

Section

1702 implies that some effort must be made to locate an officer or agent within the state before resorting to service in the manner provided by the Corporations Code. (*Batte v. Bandy* (1958) 165 Cal.App.2d 527, 536.)

Here, Plaintiff seeks an order permitting service upon Urban Remodeling by delivery to the Secretary of State. Plaintiff submits the declaration of his counsel, Bradley J. Yourist ("Yourist"), in support of the Motion. Yourist attests that Plaintiff attempted service on Urban Remodeling

through its agent for service of process at its last known business address, 11336 Camarillo Place, Suite 310, Toluca Terrace, CA 91601. (Yourist Decl., ¶¶ 3, 5.) Yourist states that the foregoing address is listed on the California Secretary of State Business Search portal and was confirmed through follow-up investigation. (Ibid.)

However, the Non Service Report attached to the declaration indicates that Urban Remodeling's agent for service of process is Gjoko Ukoeski, who is also alleged to be the owner, sole shareholder, and sole officer of Urban Remodeling. (Yourist Decl., Exh. 1; Compl., ¶ 4.) The Motion does not indicate what attempts were made to locate Ukoeski to effectuate service on Urban Remodeling. While Plaintiff's Motion for an Order Authorizing Service by Publication, set for concurrent hearing, notes other addresses as reported residential addresses for Ukoeski, Plaintiff's documented efforts do not include inquiry into those addresses.

The Court accordingly finds that Plaintiff has not attempted, with reasonable diligence, to serve Urban Remodeling by other methods prior to seeking relief.

Based on the foregoing, the Court DENIES the Motion, without prejudice to Plaintiff moving for relief after making a reasonably diligent effort at other service methods.

CONCLUSION

Plaintiff Amir Setoudeh's Motion for an Order Permitting Service of Process on the California Secretary of State is DENIED WITHOUT PREJUDICE.

Moving party to give notice.